

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 2  
Honorable Daniel T. Nishigaya**

191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2240

**DATE: August 20, 2026**

**TIME: 10:00 A.M.**

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856  
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

**IN-PERSON APPEARANCES:** Department 2 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

**REMOTE APPEARANCES:** Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 2 uses **UDC** as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 2:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

**TELEPHONIC APPEARANCE IS PROHIBITED**, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

**RECORDING IS PROHIBITED:** State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

**COURT REPORTERS ARE NOT PROVIDED:** If any party wishes to have a court reporter, the appropriate forms and process can be found here:

[https://www.scsccourt.org/general\\_info/court\\_reporters.shtml](https://www.scsccourt.org/general_info/court_reporters.shtml).

**SCHEDULING MOTION HEARINGS:** Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 2  
Honorable Daniel T. Nishigaya**

191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2240

**DATE: August 20, 2026**

**TIME: 10:00 A.M.**

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856  
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing  
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be  
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

| LINE #                 | CASE #     | CASE TITLE                             | RULING                                                                                                             |
|------------------------|------------|----------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 1</a> | 26PR202524 | In Re Estate of TIMOTHY A.<br>GALLAHER | Motion to Compel Compliance with<br>Subpoena<br><br>Ctrl Click (or scroll down) on Line 1 for<br>tentative ruling. |

- oo0oo -

## **Calendar Line 1**

**Case Name:** In Re Estate of TIMOTHY A. GALLAHER

**Case No.:** 26PR202524

Timothy Gallaher (“Decedent”) passed away on March 21, 2026. Patricia Upham, Decedent’s sister, and Christopher Upham, Decedent’s nephew, (collectively, “Petitioners”) filed a petition for probate in which they sought to be named co-executors of the estate. Shelby Luchesi-Gallaher (“Objector”), Decedent’s daughter, objected to Petitioners’ petition and filed a competing petition for probate and letters of administration with will annexed, seeking appointment of professional fiduciary Gary Emil Loebner, CLPF No. 010. At this time, no administrator has been appointed.

Currently before the court is Objector’s motion to compel third party Lincoln National Life Insurance Company (“Lincoln”) to comply with Objector’s deposition subpoena. Petitioners have opposed the motion, contending among other things, that Objector failed to show that she had served the motion on Lincoln, the deponent. In reply, Objector asserts that Lincoln was served on August 11, 2026, less than 16 court days before the date of the hearing on this matter, August 20, 2026. (See Code Civ. Proc., § 1005, subd. (b) [motion must be served and filed at least 16 court days before the hearing].) As the deponent from whom records are sought, Lincoln is entitled to full notice of the motion hearing. Accordingly, the court must continue the hearing on the motion.

The motion to compel compliance with deposition subpoena is hereby CONTINUED to August 31, 2026 at 10:00 a.m. in Department 2. Objector is ordered to notice all necessary parties with the new hearing date.

The Court will prepare the final order.

**- oo0oo -**

